

DATA PROCESSING AGREEMENT

Last updated: Jun 15, 2025

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The data processing agreement, hereinafter referred to as "DPA" is signed:

BETWEEN THE UNDERSIGNED

CLIENT NAME

Hereinafter referred to indifferently as the "CLIENT", "Data Controller" within the meaning of the GDPR

AND

TLDX SOLUTIONS GMBH, with its registered office at Tldx Solutions GmbH, Kaiser-Friedrich-Allee 51, 52074 - AACHEN, GERMANY registered under number HRB 23730 in the commercial register of the following jurisdiction: Amtsgericht Aachen, represented by its Managing Directors, Carlo Thissen and Raphael Allstadt.

Hereinafter referred to indifferently as the "Service Provider", "Data Processor" within the meaning of the GDPR

1.1 Purpose

The purpose of this DPA is to define the conditions under which the Data Processor undertakes to carry out, on behalf of and at the request of the Data Controller, the personal data processing operations defined below.

This DPA applies to personal data processing services performed by the Data Processor in the context of the execution of this contract.

In case of inconsistency between the provisions of this DPA and those of any other contract, the provisions of this DPA shall prevail for everything concerning the processing of personal data.

1.2 Applicable Texts

Within the framework of their contractual relations, the parties undertake to comply with the applicable regulations in force regarding the processing of personal data and in particular:

The General Data Protection Regulation (GDPR): Regulation 2016/679/EU of the European Parliament and of the Council of April 27, 2016 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data.

The Data Protection Act: Law No. 2018-493 of June 20, 2018, promulgated on June 21, 2018, amending the Data Protection Act of January 6, 1978 in order to exercise certain "national margins for maneuver" authorized by the General Data Protection Regulation (GDPR).

1.3 Definitions within the meaning of the GDPR

Personal Data

Any information relating to an identified or identifiable natural person.

An "identifiable natural person" is considered to be a natural person who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or to one or more elements specific to the physical, physiological, genetic, mental, economic, cultural or social identity of that natural person.

Processing

Any operation or set of operations which is performed on personal data or on sets of personal data, whether or not by automated means, such as collection, recording, organisation, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment or combination, restriction, erasure or destruction.

Data Subject

The person to whom the data subject to Processing relates.

Data Controller

The natural or legal person, public authority, agency or other body which, alone or jointly with others, determines the purposes and means of the processing.

Data Processor

A natural or legal person, public authority, agency or other body which processes personal data on behalf of the controller.

1.4 Description of the processing(s) subject to subcontracting

1.4.1 Service(s) provided

The data processor is authorized to process on behalf of and for the account of the data controller the personal data necessary to provide the tl;dv tool intended for recording, storing, written transcription and summarization of remote meetings to which the latter will be invited.

1.4.2 Nature of operations

The nature of operations performed on the data is:

- Recording,
- Storage/hosting,
- Backup,
- Processing by an artificial intelligence tool,
- Maintenance,
- Making available in written or video format

1.4.3 Purpose(s) of processing

The purpose(s) of processing are:

- Create a CLIENT space by establishing their profile;
- Record the sound and video of remote meetings to which the tl;dv service is invited to produce a video of the content in question, in mp4 format;
- Transcribe oral discussions that took place during meetings to produce a written transcript of the words spoken;
- Produce summaries and abstracts of exchanges that took place during said meetings;
- Where applicable (additional option), analyze oral discussions that took place during meetings to verify if the content corresponds to standards or expectations that the person who initiated the meeting had set for themselves;
- Where applicable (additional option), connect different tools to allow the tl;dv tool to send data (transcripts, summaries, etc.) to a third-party tool belonging to the CLIENT to facilitate access.

1.4.4 Personal data concerned

The personal data processed are:

- Administrative identification data of the CLIENT: surname, first name, email address, avatar photo, personal postal address if provided
- Data collected during meetings where the solution is used: voice, image, video, written exchanges via the tl;dv Chrome extension (not chat), screens shared during the meeting, any information given orally during the meeting.
- Logs, analytical data, cookies.

1.4.5 Data Subjects

The data subjects are:

- The CLIENT themselves,

- People invited to meetings (participants)

1.4.6 Data location (hosting)

The data concerned are hosted largely in Europe:

- Google Data Centers, in Germany
- Wasabi Data Centers, in Germany
- Hetzner Data Centers, Finland and Germany
- Mistral, in Sweden (including for the API platform whose servers are at Microsoft Sweden)

However, when selected by the CLIENT, the company Anthropic, hosted in the United States, will be used to produce written summaries by processing parts of the written transcripts resulting from recordings made during the meeting.

1.5 Obligations of the Data Processor (SERVICE PROVIDER)

Within the framework of this Contract, the Data Processor (SERVICE PROVIDER) undertakes vis-à-vis the Data Controller (CLIENT) to respect the following points:

1.5.1 Data processing for the sole purposes set by the Data Controller

The Data Processor undertakes to process personal data only for the sole purpose(s) specified by the Data Controller and which are the subject of the subcontracting.

1.5.2 GDPR compliance

The Data Processor undertakes to implement appropriate technical and organizational measures so that the processing meets the requirements of the GDPR.

1.5.3 Compliance with documented instructions from the Data Controller

The Data Processor undertakes to process personal data in accordance with the documented instructions of the Data Controller.

If the Data Processor considers that an instruction constitutes a violation of the GDPR or any other provision of Union law or Member State law relating to data protection, it immediately informs the Data Controller.

Furthermore, if the Data Processor is required to transfer data to a third country or an international organization, under Union law or the law of the Member State to which it is subject, it must inform the Data Controller of this legal obligation before processing, unless the law concerned prohibits such information for important reasons of public interest.

Any transfer of data from the Data Controller, including between the Data Processor and subsequent data processor(s), to a country located outside the European Union must be subject to the signing of Standard Contractual Clauses in their version of June 4, 2021 between the exporter and the importer.

1.5.4 Data confidentiality

The Data Processor undertakes to guarantee the confidentiality of personal data processed under this Contract.

The Data Processor will ensure that persons authorized to process personal data under this contract undertake to respect confidentiality or are subject to an appropriate legal obligation of confidentiality and receive the necessary training and awareness on cybersecurity and personal data protection.

1.5.5 Data security

The Data Processor undertakes to guarantee the security of personal data processed and to do so, implement the following security measures:

- Encryption of personal data;
- Organizational and material means to guarantee the confidentiality, integrity, availability and constant resilience of processing systems and services;
- Organizational and material means to restore the availability of personal data and access to it within appropriate time limits in case of physical or technical incident;
- A procedure to regularly test, analyze and evaluate the effectiveness of technical and organizational measures to ensure processing security.

1.5.6 Application of privacy by design and privacy by default principles

The Data Processor undertakes to take into account, with regard to its tools, products, applications or services, the principles of data protection by design and data protection by default.

1.5.7 Further subcontracting

The Data Processor hereinafter called the "Initial Data Processor", may use another data processor hereinafter called the "Sub-processor", to carry out specific processing activities subject to informing, in advance, and in writing the Data Controller and that this sub-processor respects the obligations of this Contract on behalf of and according to the instructions of the Data Controller.

The Service Provider undertakes to inform the Data Controller in writing and in advance of any envisaged change concerning the addition or replacement of a sub-processor, specifying the latter's identity, contact details, location, the processing activities that will be carried out, the data concerned and the security measures implemented.

The Data Controller will have a period of 30 [thirty] calendar days from notification to raise a reasoned objection.

It is up to the Initial Data Processor to ensure that the sub-processor provides the same sufficient guarantees regarding the implementation of appropriate technical and organizational measures so that the processing meets the requirements of the GDPR.

If the Sub-processor does not fulfill its data protection obligations, the initial data processor remains fully responsible to the data controller for the performance by the other data processor of its obligations.

1.5.8 Notification of personal data breaches

The Data Processor undertakes to notify by email to the data controller any security breach and/or data leak that has resulted in a personal data breach within 72 hours following the discovery of the incident. This notification is accompanied by any useful documentation to allow the Data Controller, if necessary, to notify this breach to the competent supervisory authority.

The notification contains at least:

- The description of the nature of the personal data breach (categories and approximate number of data subjects affected by the breach and data records);
- The name and contact details of the data protection officer (DPO) or other contact point;
- The description of the likely consequences of the personal data breach;
- The description of measures taken or that the data controller proposes to take to remedy the personal data breach, including, where appropriate, measures to mitigate any negative consequences.

After agreement from the Data Controller, the data processor communicates, on behalf of and for the account of the Data Controller, the personal data breach to the data subjects as soon as possible, when this breach is likely to result in a high risk for the rights and freedoms of individuals.

The communication to data subjects describes, in clear and simple terms, the nature of the personal data breach and contains at least the same elements as the notification above.

1.5.9 Exercise of individuals' rights

Where possible, the Data Processor must help the Data Controller to fulfill its obligation to respond to requests for exercising the rights of data subjects: right of access, rectification, erasure and opposition, right to restriction of processing, right to data portability, right not to be subject to automated individual decision-making (including profiling).

When data subjects exercise requests for exercising their rights with the Data Processor, the Data Processor will be responsible for transmitting these requests, upon receipt, by email to the CLIENT's email address used for creating their account to allow the latter, in their capacity as Data Controller, to respond within the time limits incumbent upon them.

1.5.10 Fate of data

At the end of the service provision provided for by this contract, the Data Processor undertakes to, at the choice of the parties:

- Destroy all personal data;
- Return all personal data to the Data Controller;

The return must be accompanied by the destruction of all existing copies in the Data Processor's information systems. Once destroyed, the Data Processor must justify in writing the destruction.

1.5.11 Register of categories of processing activities

The Data Processor declares to keep a register of processing activities carried out on behalf of the data controller in accordance with Article 30.2 of the GDPR.

1.5.12 Cooperation with the Data Controller for the fulfillment of its responsibilities

The Data Processor makes available to the Data Controller all information necessary to demonstrate compliance with the obligations provided for in this article and to allow the conduct of audits, including inspections, by the data controller or another auditor it has mandated, and contribute to these audits.

1.5.13 Data Protection Officer (DPO)

The Data Processor communicates to the data controller the name and contact details of its DPO, if it has designated one in accordance with Article 37 of the GDPR.

In this case, the Data Processor's DPO is: **Mr. Allan BETTAREL** allan@tldv.io Rue du moulin Posque, 03260 Saint Germain des fossés, France.

1.6 Obligations of the Data Controller (CLIENT)

Within the framework of this Contract, the Data Controller (CLIENT) undertakes vis-à-vis the Data Processor (SERVICE PROVIDER) to respect the following points:

1.6.1 Instructions to follow concerning data processing by the Data Processor

The Data Controller undertakes to provide the Data Processor with the instructions to follow in implementing data processing, that is, to indicate:

- The nature of operations performed on the data,
- The purpose(s) of processing,
- The personal data processed,
- The categories of data subjects,
- The legal basis for processing,
- The retention period for personal data;

The data controller undertakes to document in writing any instruction concerning data processing by the Data Processor.

The Data Controller also undertakes to ensure, beforehand and throughout the duration of processing, compliance with the obligations provided for by the GDPR on the part of the Data Processor.

1.6.2 Information relating to processing operations

The Data Controller must provide data subjects with information relating to processing operations at the time of personal data collection.

1.6.3 Responsibility

The Data Controller is solely responsible for collecting personal data, their relevance and compliance with the legal basis for processing.

Furthermore, in the case where processing is based on the consent of the data subject, the Data Controller must be able to demonstrate that the data subject has given consent to the

processing concerning them and that they have been informed of their right to withdraw it at any time.

In the case where the CLIENT and/or participants in one of their meetings wish to withdraw their consent, only the deletion of the disputed meeting(s) will allow this request to be fulfilled.

1.6.4 Response to requests for exercising the rights of data subjects

It is up to the Data Controller to respond to any request for exercising the rights of data subjects: right to withdraw consent, right of access, rectification, erasure and opposition, right to restriction of processing, right to portability and erasure of personal data.

The data subject may withdraw their consent at any time. The Data Controller will therefore be responsible, with the technical help of the data processor if needed, for deleting the recording of the data in question for which consent is no longer valid.

1.7 Common obligations of both parties relating to security measures

Within the framework of this Contract, the Data Controller (CLIENT) and the Data Processor (SERVICE PROVIDER) mutually undertake to respect the following security measures:

1.7.1 Environment security

The parties undertake to ensure the security of their environments notably through:

- An Information Systems Security Policy (ISSP) associated with an ISS process is implemented within the Data Processor's information systems.
- Two-step verification (2FA): at each connection to a new environment, the employee must provide their password and a unique identification code transmitted to them by SMS;
- A risk management policy.

1.7.2 Data availability

The parties undertake to guarantee continuous accessibility of the data concerned through adequate security measures:

- Daily data backups
- Business recovery plan
- Business continuity plan

- System redundancy

1.7.3 Access security

All access is granted, revoked, audited, monitored and respects a strict and up-to-date centralized process.

Only a few accredited and sensitized members of the Data Processor's infrastructure team can potentially access the data in case of a failure related to data storage.

1.8 Responsibility and guarantee

Any dispute regarding responsibility must be submitted to the competent jurisdiction. It will have the burden of determining the responsibility of each party (including subsequent data processors, agents, successors and assigns) in case of violation of a Contract provision, as well as the amount of compensation in case of responsibility or qualified fault of the Data Processor.

For the Data Controller

Status:

Company Name:

Name

For the Sub Processor

Managing Director

Carlo THISSEN